

CV 15 - 3321

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
CLERK

2015 JUN -8 PM 12:55

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DARREN WHITE,

Plaintiff,

Civil Action No. 15-cv-03321

COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE WILLIAM
J. SCHIERLE (SHIELD NO. 1491) AND DETECTIVE
SHELDON FRANKLYN (TAX REGISTRATION NO.
933786),

JURY TRIAL
DEMANDED

Defendants.
-----X

CHEN, J.
REYES, M.J.

Plaintiff DARREN WHITE, by his attorney, the Law Office of Jeff Henle, P.C., hereby brings this action under 42 U.S.C. § 1983 to redress his civil and legal rights, and alleges the following:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff, DARREN WHITE, seeks relief for the defendants' violations of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. § 1983, by the United States Constitution, including its First, Fourth and Fourteenth Amendments, and by the laws and Constitution of the State of New York. Plaintiff seeks compensatory and punitive damages, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems just and proper.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343, this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

3. Plaintiff further invokes this Court's supplemental jurisdiction pursuant to 28 U.S.C. § 1367, over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

4. Venue in this District is proper under 28 U.S.C. § 1391(b) and (c) in that Defendant CITY OF NEW YORK (hereafter "City") is administratively located within the Eastern District of New York, and the events giving rise to this claim occurred within the boundaries of the Eastern District of New York.

JURY TRIAL DEMANDED

5. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

PARTIES

6. At all times relevant to this action, Plaintiff, DARREN WHITE was a resident of Kings County, New York.

7. Defendant City is and was at all times relevant herein a municipal entity created and authorized under the law of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance and the employment of police officers, detectives, sergeants, lieutenants and other personnel. Defendant City, was at all times relevant to the events herein, the employer of Detective William J. Schierle and Detective Sheldon Franklyn.

NOTICES OF CLAIM

8. Pursuant to General Municipal Law § 50, Plaintiff timely filed two notices of

claim with the Comptroller of the City of New York setting forth the facts underlying the Plaintiff's claims against City.

9. More than thirty days have elapsed since said notices, and the City has failed to pay or adjust the claims.

10. By stipulations, the City has agreed to dispense with the need to hold 50-h examinations of plaintiff in advance of commencing this lawsuit.

11. This action has been commenced within one year and ninety days of the final dispositions rendered in New York City Criminal Court.

FACTUAL ALLEGATIONS

BROOKLYN ARREST & PROSECUTION

12. On or about April 18, 2013, at approximately 4:30 P.M., Detective William J. Schierle and other police officers, acting in concert and without cause, arrested Darren White at plaintiff's home which is located at 360 Dumont Avenue, Brooklyn, New York 11212.

13. White was transferred to a police precinct for processing before being transported to Central Booking in Kings County Criminal Court located at 120 Schermerhorn Street, Brooklyn, NY 11201.

14. White was subsequently charged with having violated New York City Administrative Code §10-131 (Unlawful Possession or Sale of an Air Pistol). The matter was assigned Docket No. 2013KN029812. White remained in the custody of the New York City Police Department or New York City Department of Corrections for some thirty hours. There was no probable cause to arrest, detain or prosecute the Darren White.

15. On July 8, 2014, the New York City Criminal Court (Kings County) dismissed the criminal charges brought against White. The records of White's arrest, arraignment

and prosecution were sealed pursuant to Criminal Procedure Law §160.50. The certificate of disposition number is: 50261.

QUEENS ARREST & PROSECUTION

16. On or about April 20, 2013, Detective Sheldon Franklyn and other police officers, acting in concert and without cause, arrested Darren White at Central Booking in Kings County which is located at 120 Schermerhorn Street, Brooklyn, New York 11201.

17. White was transported to Central Booking in New York City Criminal Court (Queens County). White was charged with Penal Law §160.15 (Robbery in the First Degree) and Penal Law §160.10 (Robbery in the Second Degree). The matter was assigned Docket No. 2013QN021864.

18. At the request of the Queens County District Attorney, the judge presiding in the New York City Criminal Court (Queens County) set bail in the amount of \$75,000.00. Incapable of making bail, White remained in the custody of the New York City Department of Corrections against his will until January 22, 2014.

19. During his eight plus months of confinement, White was housed at City's Rikers Island complex. At times, White was held in a segregated unit at Rikers Island.

20. The Queens County District Attorney never presented any proof that White violated any law to a Grand Jury, jury or judge. The Queens County District Attorney never demonstrated that there was reasonable or probable cause that White committed either felony with which he was charged.

21. As a pre-condition to negotiating a plea agreement, the Queens District Attorney required White to waive his rights pursuant CPL 30.30 and CPL 180.80.

22. On July 23, 2014, the New York City Criminal Court dismissed the criminal charges brought against White. The records of White's arrest, arraignment and prosecution were sealed pursuant to Criminal Procedure Law §160.50. The certificate of disposition number is: 132668.

CAUSES OF ACTION

FIRST CAUSE OF ACTION: DEPRIVATION OF RIGHTS UNDER THE FOURTH & FOURTEENTH AMENDMENT OF THE CONSITUTION AS WELL AS 42 U.S.C. § 1983

23. Plaintiff re-alleges and incorporates by reference the allegations set forth in paragraphs 1 through 22 of this complaint as though fully set forth herein.

24. The conduct of the defendants, as described herein, amounted to false arrest, malicious abuse of process, unreasonable detention, abuse of authority, a pattern of harassment, denial of due process rights and malicious prosecution.

25. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

26. As a direct consequence of the defendants' actions, plaintiff was subjected to the deprivation of his liberty, humiliation, emotional distress and was otherwise damaged and injured.

27. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE AND MUNICIPAL POLICY - against defendant City

28. Plaintiff re-alleges and incorporates by reference the allegations set forth in

paragraphs 1 through 27 of this complaint as though fully set forth herein.

29. Defendant City, acting through the New York Police Department, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers and law enforcement personnel.

30. Defendant City maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and law enforcement personnel. In failing to take any corrective actions, defendant City acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.

31. The actions of defendants, acting under color of State law, deprived plaintiff of his due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, and the right to due process.

32. By these actions, defendants have deprived plaintiff of his rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION: CONSPIRACY

33. Plaintiff re-alleges and incorporates by reference the allegations set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.

34. Defendants under the color of law conspired to deprive Darren White of his

constitutional rights to be free of unlawful arrest, false imprisonment and malicious prosecution.

35. Defendants were cognizant of the fact that they could not establish reasonable cause that Darren White was guilty of the crimes of which he was accused. Nonetheless, defendants conspired to ensure that Darren White was arrested, imprisoned and prosecuted before the charges were ultimately dismissed without ever having been converted or presented to a Grand Jury in compliance with the applicable portions of New York's criminal procedure law.

FOURTH CAUSE OF ACTION: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

36. Plaintiff re-alleges and incorporates by reference the allegations set forth in paragraphs 1 through 35 of this complaint as though fully set forth herein.

37. Defendants' decision to arrest, imprison and prosecute Darren White in these two matters was extreme, outrageous and intolerable in a civilized society.

38. The defendants' conduct was intended to and did in fact cause emotional distress to Darren White.

39. As a result of the foregoing, the plaintiff was deprived of his liberty, subjected to emotional pain and suffering, and otherwise damaged and injured.

FIFTH CAUSE OF ACTION: RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS

40. Plaintiff re-alleges and incorporates by reference the allegations set forth in paragraphs 1 through 39 of this complaint as though fully set forth herein.

41. The conduct of the defendants all occurred while they were in the course of their

employment as NYPD detectives. As a result, defendant City, is liable to plaintiff pursuant to the state common law doctrine of respondeat superior.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages against all defendants in an amount to be determined by a jury;
- b. Punitive damages against all defendants in an amount to be determined by a jury;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs, interest and attorney's fees;
- e. Such other and further relief as this Court may deem just and proper.

Dated: New York, New York
June 1, 2015

Law Office of Jeff Henle, P.C.


By: Jeff Henle
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The JS 44 civil cover sheet and the information contained herein shall replace the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS**CHEN, J.****DEFENDANTS****DARREN WHITE****THE CITY OF NEW YORK, ET AL**

(b) County of Residence of First Listed Plaintiff **KINGS**
(EXCEPT IN U.S. PLAINTIFF CASES)

County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)

REYES, M.J.

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF
THE TRACT OF LAND INVOLVED.

(c) Attorneys (Firm Name, Address, and Telephone Number)

LAW OFFICE OF JEFF HENLE, P.C.
708 THIRD AVENUE, FIFTH FLOOR
NEW YORK, NY 10017; (212) 209-1034

Attorneys (If Known)

LAW DEPARTMENT (CORPORATION COUNSEL)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☐ 2 U.S. Government Defendant
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

SUMMONS ISSUED**IV. NATURE OF SUIT** (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☒ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from Another District (specify)
☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
 Title 42 U.S.C. § 1983

Brief description of cause:
 Unlawful Deprivation of Civil Rights

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:
JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE
 June 1, 2015

SIGNATURE OF ATTORNEY OF RECORD
 //Jeff Henle

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CERTIFICATION OF ARBITRATION ELIGIBILITY
 Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, Jeff Henle, counsel for Darren White, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☒ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No
- b) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☒ Yes ☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐ Yes (If yes, please explain) ☒ No

I certify the accuracy of all information provided above.

Signature: //Jeff Henle